



This is for information and instruction. Do not file it.



HOW TO CHANGE A NAME

FOR MINOR CHILDREN

STEPS FOR MINOR NAME CHANGE page 2

ARE THESE FORMS FOR ME? page 3

IMPORTANT INFORMATION page 4

EXTRA HELP WITH THE FORMS page 5

HOW TO FILE THE FORMS page 6

WHAT'S NEXT page 7



This overview is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk if your county has local rules and, if so, where you can get a copy.

HOW TO CHANGE A NAME

FOR MINOR CHILDREN

1

FILL OUT AND FILE FORMS. START YOUR CASE.

To start a Minor Name Change, you begin by filling out a *Request for Name Change (Minor Children)*. Make sure the child's name matches the name on the birth certificate exactly. If the other parent agrees, they can sign the consent form on the *Request for Name Change - Child Information*. You will file it with the circuit clerk's office in the county where you live and get a case number and a court date.

If having the court file be public would be a hardship and have a negative impact to health or safety, you can ask the judge to remove the file from the public record by filing a *Motion To Impound (Make Court Records Private)*. Until the *Motion* is granted or if the *Motion* is denied, the *Request for Name Change (Minor Children)* case will be a public record.

Use these forms:

- *Request for Name Change (Minor Children)*
- *Request for Name Change - Child Information (Minor Children)*

2

GIVE NOTICE TO OTHER PARENT OR SHOW YOU TRIED TO GIVE NOTICE.

If the other parent did **not** sign a consent form, in most cases after filing the petition you must notify the other parent or legal guardian. You can give notice by sending the *Notice of Court Date* certified mail with return receipt requested **or** by having a sheriff or licensed private process server deliver the notice. If you cannot find the other parent, the judge may ask you to show what you did to try to give notice to the other parent.

Use these forms:

- *Notice of Court Date Request for Name Change (Minor Children)*
- *Statement on Trying to Provide Notice (Minor Children)*

3

GO TO COURT AND ASK THE JUDGE FOR THE NAME CHANGE.

In court, you will be placed under oath and asked questions about the name change. You may have to bring your child with you. Answer the judge's questions truthfully. The other parent or legal guardian can object to the name change at the hearing. The judge will either grant or deny your *Request for Name Change*.

Use this form:

- *Order for Name Change (Minor Children)*

4

CHANGE THE DOCUMENTS IF THE COURT APPROVES THE NAME CHANGE.

After you receive the court order approving the name change, ask the Clerk for certified copies of your *Order for Name Change*. Nothing changes automatically, so you will need to bring the certified copy of the *Order* to update your child's identity records, such as changing your child's name on their social security card, birth certificate, driver's license/state ID card, and other documents.

Laws covering these forms: [735 Illinois Compiled Statutes, section 5/21-101 through section 5/21-104.](#)



STEP 1

FILL OUT AND FILE FORMS. START YOUR CASE.

ARE THESE FORMS FOR ME?

You may use these forms to ask the court to change your child's name if:

- You have lived in Illinois for at least 3 months or will have lived in Illinois for 3 months at the time of the court hearing or entry of name change order.
- You have one of the following relationships with the children:
 - parent with custody; or
 - guardian with legal custody; or
 - the children have lived in your home for 3 years and are recognized as your adopted children.
- If the minor who is seeking a name change has been **convicted of a felony**, the minor must have completed the sentence or been pardoned to get a name change.
- Anyone currently incarcerated in state or federal prison **cannot** get a name change.

Forms required to start a Minor Name Change case:

- *Request for Name Change*: gives the court each child's current and proposed new name.
- *Request for Name Change - Child Information*: gives the court the information needed to decide if you can change each child's name. Complete one for each child.
- *Notice of Court Date for Request for Name Change*: tells any parents whose parental rights have not been terminated and any person who has physical custody of the children that you are asking to change the child's names.
- *Order for Name Change*: is used by the judge to approve or deny your *Request for Name Change*. Complete one for each child.

Note: Make sure the current name *matches exactly* as it is on the birth certificate to avoid any delays or issues.

Forms that may be needed in some circumstances:

- *Request for Name Change - Additional Children*: use only if you are trying to change the names of more than 4 children. If you are asking to change the names of more than 4 children, give the court the children's current and proposed new names.
- *Request for Name Change - Additional Parent*: use only if there is more than one other parent or legal guardian. Do not include the parent petitioning to change the child name (yourself). This form tells the court whether the parent agrees with the name change.
- *Motion To Impound (Make the Court Records Private)*: used to ask the court to keep the case private so only the people involved in the case, like the judge and the court clerk, can see them unless the judge gives someone else permission.
- *Statement on Trying to Provide Notice*: used when you cannot find the other parent, this form explains the steps you took to try to locate them.

You can find all the statewide forms online at: ilcourts.info/forms.

How do I get my forms notarized?

- If the other parent or guardian agrees to the name change, their signature on the forms needs to be notarized. To get the forms notarized, they must be signed in front of an official notary public.
- Notary publics are often found at a local bank, county courthouse, or town/city hall. Some currency exchanges, real estate offices, and law firms offer this service. An independent notary public can also be found by searching online or the phone book yellow pages.
- Call ahead to find out if the location has a notary public and if an appointment is needed.
- There may be a small fee for getting a form notarized.
- The person signing the form must bring their photo ID to the notary public. Their ID cannot be expired and must show their current address.

The minor was born outside of Illinois and that state requires an order of gender change to change my birth certificate. Can I ask for an order on gender change at the same time as my name change?

- Illinois **does not require** an order on gender marker change to change your birth certificate or state IDs.
- If you were born in a state that **does require** an order to change your birth certificate, you can file a separate petition at the same time as your *Request for Name Change*.
- For more information visit: ilao.info/change-gender-on-id. You will need to check the requirements for the state you were born in to see if this applies to you, and to verify the specific requirements for that state. You may need to consult with an lawyer.

IMPORTANT INFORMATION

► **For people who have orders allocating parental responsibilities:**

As of January 1, 2016, courts in Illinois no longer award child custody. Instead, the law requires the court to assign "parental responsibilities," including significant decision-making responsibilities and parenting time. If your divorce or family case was decided after January 1, 2016, most judges probably will only allow you to bring a name change request if you are a parent who has been given significant decision-making responsibilities.

► **WARNING:** It is a felony to seek a name change when the individual whose name is being changed is required to register under the **Sex Offender Registration Act, the Murderer and Violent Offender Against Youth Registration Act, or the Arsonist Registration Act** in this State or a similar law in any other state, and has not been pardoned, UNLESS the request for legal name change is due to:

- marriage;
- religious beliefs;
- status as a victim of trafficking; OR
- gender-related identity as defined by the Illinois Human Rights Act.

Anyone who is required to register under these laws and is granted a legal name change **is required to notify the law enforcement agency with whom they are registered of the name change within 3 days for sex offense, 5 days for murder/violence against youth, or 10 days for arson.**

► **Special Note for People Who Need to Keep Their Name Change Private**

- You can ask the judge to remove the case from the public record by filing a *Motion To Impound (Make Court Records Private)* if you believe public disclosure would be a hardship and have a negative impact on your health and safety.
- Examples of hardship may include, but are not limited to: physical harm, discrimination, harassment, bullying, or threats of violence. You may attach supporting documents, such as court orders, to help explain why it would be a hardship, but official documentation is not required — your *Motion* alone is enough.
- Other examples include, but are not limited to, people who are transgender, adoptees, survivors of domestic or intimate partner abuse, survivors of gender-based violence, survivors of human trafficking, refugees, people who have been granted special immigrant status, people who have survived reparative or conversion therapy, or people who have been granted asylum in the U.S.
 - File a *Motion To Impound (Make Court Records Private)* when you submit your name change request if you want to keep your case private.
 - The judge will review your motion when they consider your name change request. If granted, your court records will remain private.

Note: If you or a member of your household do not want to disclose your address, you can use an alternative address on these forms.

EXTRA HELP WITH THE FORMS

Easy Form

Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program you can download or email your forms to e-file or print them.

Easy Forms are free to use. Visit ilao.info/child-nc-easy-form or scan the QR code to use the Easy Form.



For more information about going to court including how to fill out and file forms, call or text **Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please visit **Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.



COSTS AND FEES

There may be costs and fees to take part in a court case. This might include fees for filing court documents. Some case types have no fee for filing. Depending on the type of court case, there may be other costs and fees charged – for example, sheriff's fees for serving documents on the other people in the case. If you cannot afford to pay costs and fees, you can ask the court to file for free or at a reduced cost by filing an *Application for Waiver of Court Fees*.

This is a separate form you can find at: ilcourts.info/fee-waiver-forms.

HOW TO FILE THE FORMS



E-filing

- After you fill out your court forms, file them with the Circuit Clerk. This is done by electronic filing, called “e-filing.” You do not have to e-file if:
 - You qualify for an exemption (see the Not E-filing section below) or
 - Your case involves a criminal matter or is filed under the Juvenile Court Act of 1987.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- Most people e-file their forms using Odyssey eFileIL at ilcourts.info/efile.
- Follow step-by-step instructions and watch videos that walk you through the steps for e-filing at ilcourts.info/efile-info.
- E-filing is easier on a computer. It may not work on a cell phone or tablet.
- Original wills may not be e-filed.
- If you do not have access to a computer or if you need help e-filing, take your completed forms to a public library or a Circuit Clerk, Appellate Clerk, or Supreme Court Clerk’s office. These places offer public computers where you can e-file your forms.
 - Your courthouse may offer public computers with a scanner where you can turn your paper forms into electronic files.
 - Librarians and courthouse staff may be able to help you e-file, but they cannot provide legal advice.



Not E-filing

- Some people are not required to e-file, which means they can file paper forms at the courthouse or by mail. People who do not have to e-file are:
 - Inmates in prison or jail who do not have a lawyer.
 - People with a disability that keeps them from e-filing.
- You may also qualify for an exemption from e-filing if you:
 - Do not have internet or computer access in your home or can’t meaningfully use it.
 - Do not have an email account.
 - Do not have a credit card, debit card, or bank account.
 - Have trouble reading, writing, or speaking English.
 - Tried to e-file your forms, but you were not able to because the equipment or help you needed was not available.
 - Are filing an emergency case as allowed by local rule or order.
- To ask for an exemption from e-filing, use the form at ilcourts.info/exempt. If you cannot print this form, then ask for it at your local courthouse.
 - File your *Certification for Exemption from E-Filing* form along with your other court forms at the Circuit Clerk’s office or by mail.
 - Bring or send your signed court forms and at least two copies of your forms to the Circuit Clerk’s office. Ask them to stamp your copies and return them to you.
 - If you need to make copies of your forms, you can do that at the Circuit Clerk’s office. They may charge you a fee to make copies.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- If you mail your court forms to the Circuit Clerk’s office, include a stamped envelope addressed to you. The Circuit Clerk will file your forms and then send your copies back to you in the envelope.



WHAT'S NEXT

Once you have filed and have a case number, ask for a court date.

- Ask the Circuit Clerk if you have to schedule a court date or if one will be scheduled automatically.
- If you need to schedule the court date, ask the Circuit Clerk how to do so. The Circuit Clerk may schedule the court date, or you may have to speak with other court staff.
 - Ask the person who schedules the court date if you need to bring the children to your court date.
- When you get your court date, complete the *Notice of Court Date Request for Name Change* if you know the location of the parents whose parental rights have not been terminated.
- If you do not know the location of the parents whose parental rights have not been terminated, you must try to locate that person's address by searching on the internet and calling friends or relatives. If you still cannot find their address, complete the *Statement on Trying to Provide Notice*.
- If having the court file be public would be a hardship and have a negative impact to health or safety, you can ask the judge to remove the file from the public record by filing a *Motion To Impound (Make Court Records Private)*.
 - Until the *Motion* is granted or if the *Motion* is denied, the *Request for Name Change (Minor Children)* case will be a public record.
- **In Cook County (1st District) only:**
 - The Court requires all consenting parents to e-file, as an exhibit, a photo or scanned copy of government issued photo IDs.
 - If the petitioning parent's photo ID does not have a Cook County address, you need to provide additional proof of address (such as a lease or a bill).
 - E-file the child's birth certificate.
 - Redact any sensitive information. The exhibits must be saved as a pdf file and be in portrait orientation. If a birth certificate is in a language other than English, the court may request that you provide a certified translation of your birth certificate.



STEP 2

GIVE NOTICE TO OTHER PARENT OR SHOW YOU TRIED TO GIVE NOTICE.

- You must give notice to the following people if they have not signed and notarized the *Request for Name Change (Minor Children)*:
 - The biological parent of the children, unless there is a court order terminating the parent's rights;
 - A person who has legally adopted the children;
 - A person who was married to the biological mother at the time of the children's conception or birth;
 - Anyone who has physical custody of the children.
- There are two ways to give notice:
 - Certified Mail addressed to the person to be notified and request a return receipt (PS Form 3811, usually green paper); OR
 - Service of process by Sheriff or licensed private process server.

How to give notice by Certified Mail (green card).

- Mail a copy of your forms to each person who will get notice by USPS Certified Mail (green card). Use the tracking information to determine delivery status on the USPS website.
- When you receive the certified mail receipt (green card) and the tracking information shows the delivery status, e-file it with the Circuit Clerk.
- If the letter is returned to you as undeliverable, but you know the person's location, you may need to give the person your forms by service of process by Sheriff or process server. If you do not know the person's location you should go to *Publishing Your Notice* on page 9.

How to give notice with Sheriff.

- Write the court date on the *Notice*.
- Staple a *Notice* to the front of the copy of your forms that will go to each person who will get notice.
- In person or by mail, ask the Sheriff in the county where the person to be notified lives to give them your *Notice* and your forms.
 - In Person
 - Bring copies of your *Notice* and your forms to the Sheriff's office in the county where the person to be notified lives.
 - ◆ Pay the Sheriff's fees for each *Notice* OR give the Sheriff a copy of your *Order for Waiver of Court Fees* (if you have one) to not be charged a fee.
 - By Mail
 - Mail copies of your *Notice* and your forms to the Sheriff's office in the county where the person to be notified lives.
 - Include the *Letter to the Sheriff* found at: ilcourts.info/name-change-forms.
 - Include a self-addressed and stamped envelope for the Sheriff to mail the Affidavit of Service to you.
 - Pay the Sheriff's fees for each *Notice* OR mail the Sheriff a copy of your *Order for Waiver of Court Fees* (if you have one) to not be charged a fee.
- If the other parent or person who is not the parent with physical custody of the children does not live in the same county or state where the case was filed:
 - Get the name, address, and telephone number of the Sheriff for the county or the state where the other parent or person who is not the parent with physical custody of the children lives.
 - Call the Sheriff in that county or state to find out:
 - If it is the correct Sheriff's department for the address where you want the other parent or person who is not the parent with physical custody of the children to be notified;
 - The address where you should bring or mail your *Notice* and forms;
 - The number of copies of your *Notice* and forms to bring or send; AND
 - The Sheriff's fees for service and if they will honor your *Order for Waiver of Court Fees* (if you have one).
- Confirm the Sheriff gave your forms to the other parent or person who is not the parent with physical custody of the children.
- After the Sheriff notifies the other parent or person who is not the parent with physical custody of the children with your court forms, they will fill out an Affidavit of Service and file it with the Circuit Clerk or mail it to you.
 - If the Sheriff files the completed Affidavit of Service directly with the Circuit Clerk, call the Circuit Clerk to find out if it has been filed. If it has been filed, ask the Circuit Clerk how to get a copy.
 - If the Sheriff mails the completed Affidavit of Service to you, make a copy for yourself, file the original with the Circuit Clerk, and have the Clerk file stamp your copy.
 - If the Sheriff was not able to notify the other parent or person who is not the parent with physical custody of the children, ask them why. You should try to fix the problem and ask the Sheriff to try to notify the other parent or person who is not the parent with physical custody of the children again.



If you have given notice to the other parent or person who is not the parent with physical custody of the children, **skip to Step 3 on page 10.**

What to do if you can't find the other parent.

- Try your best to find the other parent. You can send mail to their last known address, call or text their phone, send messages online, ask family or friends, try to contact their job or last known address, look them up on the internet, or conduct an inmate search on the website of the Illinois Department of Corrections and county jails.
- Write down everything you did to try to find them in the *Statement on Trying to Provide Notice*. Include dates, who you talked to, and what happened (like if a message bounced back or no one answered).
- Go to your court date. Bring your documents and a completed *Statement on Trying to Provide Notice*.
 - The judge may put you under oath to ask you questions about your attempts to find the other parent.
- If you can't find the other parent, some judges might require you to publish notice in a newspaper in the county where you live once a week for 3 weeks in a row.
 - Contact an Illinois newspaper in your county and set up publication of the notice. If there is no newspaper in your county, ask the Circuit Clerk for options.
 - The notice must appear in a newspaper for the first time at least 6 weeks before your court date.
 - Newspapers may charge you a publication fee.
 - If you have a fee waiver, some newspapers will not charge you for the publication. However, the newspaper is not required to waive or reduce your fee for publication even with a fee waiver. If you cannot afford the publication fee, you will need to file a *Motion* asking the court to order the county to pay the cost of publication. You can find the *Motion* form at: ilcourts.info/forms.
 - After the notice appears in a newspaper 3 times, get a Certificate of Publication from the newspaper.
 - Ask the newspaper how you will get the Certificate of Publication. The newspaper will either:
 - Send the Certificate directly to the Circuit Clerk;
 - Mail the Certificate to you; OR
 - Tell you to pick up the Certificate in person.
 - File the Certificate of Publication with the Circuit Clerk before your court date. If the newspaper sends the Certificate directly to the Circuit Clerk, make sure it arrives before your court date and ask the newspaper to send you a copy.

Get ready for your court date.

- Decide and write down:
 - What you want to ask the judge to do for you;
 - If there is a disagreement with another parent about changing the child's names, decide and write down:
 - What you will say to the judge if asked to tell your side of the case; AND
 - Questions you have for witnesses, if there are any.
 - Gather and make copies of documents you want the judge to see. Bring the original for the judge and one copy for you and an additional copy for each of the people in the case.
 - If you want the judge to hear from other people, those people will have to come to court and be witnesses (in most cases, you cannot bring in written statements of witnesses).



STEP 3

GO TO YOUR COURT DATE TO ASK THE COURT FOR THE NAME CHANGE.

- Bring the children with you to court (or have them available by Zoom if your county allows), unless you have been told not to by the judge.
- Bring these items with you to court:
 - Copies of all the documents you filed with the Circuit Clerk;
 - Children's birth certificates;
 - Photo ID;
 - *Order for Name Change (Minor Children)* for each child; AND
 - Any documents you want the judge to look at (like papers relating to criminal records).
- If you were born outside of Illinois, some states require you to include additional information in the *Order* to change birth records (for example the date, location of birth, and Certificate Index Number). Make sure to **check the birth state's requirements and you can include that in the Misc. section on the Proposed *Order for Name Change*.**



Make sure you know how to attend your court date.

Your court date could be in person, by phone, or by video. If it is by phone or video, it is called a "Remote Appearance." Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks.

Your court date could be in person, by phone, or by video.

- If your court date is in person:
 - Get to the courthouse at least 30 minutes early so you have enough time to get through security.
 - Go to the courtroom number listed on your court form.
 - If your forms do not have a courtroom number, look for a list of cases at the courthouse or ask someone at the Circuit Clerk's office.
 - Check in with the courtroom staff and wait for your name and case number to be called.
- If your court date is by phone or video:
 - Make sure to have the call-in or login information for your court date and make sure your technology is working.
 - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court, or visit their websites for specific technology instructions.
 - Start trying to log-in to your courtroom at least 15 minutes before the start time in case you have any problems with technology.
 - Follow these tips to attend court by phone or video: ilcourts.info/remote-resources.
- When your case is called, introduce yourself to the judge. If you are attending by phone or video remember to unmute yourself.

If you believe the other parent will contest the child's name change.

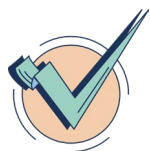
- Tell the judge your side of the case and answer questions.
- Show your evidence, including documents and photos. Give a copy to the judge. Be prepared to explain why the document or photo is important.
- Tell the judge the name of your witnesses.
- Ask the witnesses questions you prepared in advance.
- The judge and the people you notified of the court date can ask questions of your witnesses when you are done.
- The judge decides whether the documents, photos, or witness testimony can be considered in making a decision about your case.
- The other parent or person who is not the parent with physical custody of the children presents their case.
 - The other people you notified of the court date will also get to present their case by testifying, giving the judge evidence, and questioning witnesses.
 - You will get to see any documents and photos the other people you notified of the court date bring to court. If you do not think the judge should consider them in making a decision about your case, tell the judge why.
 - You may ask questions of the witnesses brought by the other people you notified of the court date. Write down your questions while they are speaking to the other people you notified of the court date or the judge.



STEP 4

CHANGE THE DOCUMENTS IF THE COURT APPROVES THE NAME CHANGE.

- The decision is called a court order.
- If the judge needs more information to make a decision, the judge may set up another court date. Make sure you understand what information is needed and get it before the new court date.
- If the judge needs to think about it more, the judge may let you know the decision later by mailing a court order or at another court date.
- If the judge has enough information, the judge may decide right then and fill out a court order and approve the name change. Get a copy of the *Order*.
- The *Order for Name Change* will not change any legal documents automatically. You need a certified copy of the *Order* to change the children's names on records like a birth certificate, a social security card, and a driver's license.
 - You can get certified copies of the *Order* from the Circuit Clerk.
 - There may be a fee for the certified copies unless you have a fee waiver.



YOU'VE COMPLETED THE STEPS OF A NAME CHANGE CASE.